



POLICE DEPARTMENT

June 13, 2013

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Matthew Davis
Tax Registry No. 914746
Police Service Area 4
Disciplinary Case No. 2011-5411

The above-named member of the Department appeared before me on February 8, 2013, charged with the following:

1. Said Police Officer Matthew Davis, assigned to Police Service Area #5, while off-duty, on or about August 2, 2011, within the confines of the 75th Precinct, in Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer was involved in a physical altercation with his girlfriend, Tarnisha Winter.¹

P.G. 203-10, Page 1, Paragraph 5 ■ GENERAL REGULATIONS

The Department was represented by Mark Berger, Esq., Department Advocate's Office, and Respondent was represented by Craig Hayes, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

¹ The specification spells the name, "Winter," but the Domestic Incident Report refers to "Wynter." Wynter will be used throughout this Report and Recommendation.

DECISION

Respondent is found Not Guilty.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Sergeant Greg Ostrowski as its sole witness.

Sergeant Greg Ostrowski

Ostrowski is currently assigned to Police Service Area (PSA) No. 4 and has been a member of the Department for 15 years. On August 2, 2011, Ostrowski was a sergeant working the midnight tour in the 75 Precinct. Ostrowski's duties included supervising police officers and assisting them on jobs throughout the tour.

On August 2, 2011, Ostrowski became responded to an incident involving Respondent. Ostrowski said he was requested to respond to 666 Georgia Avenue for a family dispute involving a member of the service. Arriving on scene, Ostrowski spoke with Police Officers Dengelis and Whitehead who informed him that there was a dispute between a female who was on the scene and Respondent. The female involved in the dispute was Tarnisha Wynter. Ostrowski stated he spoke with Wynter briefly while on the scene. Ostrowski explained:

I had learned that she went to 666 Georgia to confront her boyfriend. She had suspected that he was there with someone else. She went to confront him and there was a physical altercation with this confrontation.

Ostrowski testified Wynter had gone to Respondent's house and was banging on his door for about 20 minutes. Ostrowski stated Wynter told him, Respondent came up

behind her “grabbed her in like a bear hug, picked her up off the ground, started swinging her around. She hit her head on the side of the house. He then threw her down and tried to push her down the stairs.” Ostrowski said Wynter informed him that nothing else happened after that.

When encountering Wynter at the scene, Ostrowski observed a small laceration above her right eye and a small laceration on her right foot. Ostrowski stated he saw a “droplet” of blood as well. Ostrowski was shown Department’s Exhibit (DX) 4, which he explained was a photograph taken with the domestic violence camera showing the injuries on the right eye and right foot of Wynter. Ostrowski described the injuries in (DX 4), “This is the laceration above her right eye. It wasn’t bleeding at the time. She had put like a napkin over it. That is a hole that was her foot and it was a scrape, but that was a droplet of blood that we see was coming out.”

After interviewing Wynter and getting her account of what happened, Ostrowski attempted to speak with Respondent but was unsuccessful. He banged on the door and first floor windows of Respondent’s house multiple times. He tried the doorbell and shining flashlights into the second story windows to get somebody’s attention. Ostrowski even turned the radio motor patrol car (RMP) emergency lights on hoping someone would look out the window based on the lights flashing. Ostrowski called Respondent’s command to get a cell phone number to contact him. He explained it was also part of his responsibility to find out if Respondent was armed, whether or not he had his gun on him, and how many guns he had.

Ostrowski said he notified the duty captain who told him to have the Hostage Negotiation Team (HNT), Emergency Service Unit (ESU) and Technical Assistance and

Response Unit (TARU) respond to the scene. Once ESU arrived, they attempted to gain entry by banging on the windows and doors as well as shining lights into the windows. Ostrowski stated there was still no answer at the door. The duty captain eventually arrived at the scene. Ostrowski expressed that 20 to 30 minutes had elapsed by the time the duty captain arrived and the initial time he started knocking on the door. In total, Ostrowski testified there were 10 to 12 members of the service at Respondent's house.

When the duty captain arrived on the scene he knocked on the door and Respondent opened the door. Ostrowski explained the duty captain spoke with Respondent who produced his ID card. There was another person in the house with Respondent as well. Ostrowski said he along with Respondent, the duty captain, the other occupant in the house and Wynter went back to the 75 Precinct.

Ostrowski testified that he took a written statement (DX 3) from Wynter which accurately reflected what she told him at the scene, and he had no further involvement in the case after that.

During cross-examination, Ostrowski admitted when Respondent opened the door he immediately identified himself to the duty captain. Ostrowski agreed Respondent did not do anything which would be considered noncompliant once he opened the door for the duty captain. Ostrowski acknowledged Wynter told him she was banging on Respondent's door for 20 to 25 minutes because she suspected him of cheating. Reviewing his transcript from his official Department interview, Ostrowski admitted Wynter told him she would stay and bang on Respondent's door all night if she had to because she wanted to find out who was in the house with him. Once arriving on the

scene, Ostrowski agreed he started banging on the same door Wynter was banging on before he arrived.

Ostrowski gave an estimated description of Respondent as six-foot-six and Wynter was described as five-ten five-eleven with a medium build. Ostrowski acknowledged Wynter had a cut to the right side of her head that was not bleeding. Ostrowski described the injury as “a red cut, but no blood was coming out.” Ostrowski further acknowledged that Wynter had another cut on her ankle/foot area.

During questioning by the Court, Ostrowski said he did not recall if Wynter and Respondent had plans that night. The only thing Ostrowski remembers Wynter stating was that she went to Respondent’s house to see if he was cheating on her. According to Ostrowski, Wynter did not specifically state how she sustained the injuries to her eye and foot. Ostrowski explained Wynter told him Respondent came up behind her, picked her up in a bear hug and swung her around. Ostrowski said Wynter told him she hit her head against the wall and then was dropped to the ground. When she tried to get back up, Respondent pushed her back down. Wynter told Ostrowski she was not sure how she got the cut on her foot. Ostrowski stated he did not speak with any other people or witnesses at the scene.

Respondent’s Case

Respondent testified in his own behalf.

Respondent

Respondent has been with the Department for 18 years and is currently assigned to PSA 4. On August 2, 2011, Respondent was living at his two family home, located at

666 Georgia Avenue, Brooklyn, New York. Respondent lives on the second floor in the building. Respondent explained Wynter was an ex-girlfriend who he dated on and off for about three years. On August 2, 2011, Respondent said the state of his relationship with Wynter was that they "had broken up." Respondent stated, "She had decided that she was going to move on. I wasn't giving her the commitment she wanted, so she was going to seek other places. Not with me." Respondent expressed that he still occasionally saw Wynter at times after breaking up.

On August 2, 2011, around midnight, Respondent said he was sleeping in his bed with Shirley Valal, whom he was dating at the time. He heard the doorbell ring for 20 minutes then stop. Then he heard "like knocking" on his door for another 20 minutes and eventually he heard the door being kicked. Upon hearing the kicking, Respondent testified he then went to see what was going on. When he first heard the doorbell ring, Respondent did not know who was outside. Respondent explained that he did not go outside initially upon hearing the doorbell ring because if he was expecting someone, they would call him first and let him know they were outside. Also, Respondent noted, his doorbell sometimes does not work, so if someone was downstairs, they would call and he would go downstairs and open the door.

Respondent explained that the kicking is what made him go downstairs. He went downstairs and came up through the basement. He did not want to open the front door because he felt it could have been a problem and he did not know who was outside. Respondent walked out of his house from the basement and saw a woman banging on his door. Respondent approached the person and the woman turned around and then he

realized it was Wynter. Respondent explained the interaction he had with Wynter at that time:

And then she stated that, oh, I see you have that bitch in there again. You're still fucking with her. And that's when she became very irate. She said I'm tired of this. I tried to tell her that, no, I'm not. I was trying to tell her that I didn't have who she thought I had in there, but it was a different girl. I did have a girl in there, but it wasn't the girl that she thought I had in there.

Respondent stated the person he had in his house was not the person Wynter was claiming. Respondent explained the person in his house was a third girl. When Respondent approached Wynter, he said she was irate and was yelling and screaming. With Wynter acting this way, Respondent testified he stepped away from her because she was upset. Respondent explained, "She was very upset because she thought I was with another woman that she had an altercation with before, a verbal altercation with at my house before." The prior incident, Respondent stated, "Was basically a similar incident to when the other woman came to the house and Tarnisha was home. She was at my house. And those two went downstairs and they were just arguing with each other, and the other woman just walked away." The incident did not rise to criminal conduct.

With Wynter yelling and screaming on Respondent's front porch, she then came towards Respondent with something in her hand. Respondent said it was a black object and assumed it was a cell phone. With the object in her hand, Respondent stated Wynter made a swinging motion towards him. Respondent sidestepped Wynter, who missed hitting him and she then stumbled and fell on the porch. Respondent explained Wynter attempted to hit him with her right hand then fell down on the porch on her right side. When Wynter fell on the porch, Respondent attempted to grab her so she would not fall

down the stairs. Respondent stated he helped Wynter get up off the porch, but she said to him "get the fuck off me" and he released her. Wynter's friends who were at the scene then came up and said, "What's going on." Respondent testified, Wynter and her friends were irate and they said they might call the police. Respondent decided at that point, with three women arguing with him, he decided to go back in the house. Respondent explained, "I said, so call me when the police come because I'm not going to stand out here and get into an argument, another altercation with all three of you women because I know it's not going to work out good for me." Respondent stated Wynter had his cell phone number prior to him going back into his house.

Respondent went back into his house to his second floor apartment. Once inside, he continued to hear banging on his door, which he thought was Wynter and her friends. Respondent did not answer the door because he thought they were irate and another altercation might occur. Respondent said he did not call 911 because he did not think a crime had been committed, and he thought Wynter and her friends would go away. Eventually, Respondent explained, he received a call from ESU stating they were downstairs. Once receiving the phone call, Respondent stated he went downstairs and opened the door. Upon opening the door, Respondent saw two members of ESU and the duty captain. Respondent let them in the house and identified himself. Respondent was directed to report to the 75 Precinct where he was suspended and arrested.

After being arrested, Respondent had charges brought against him in Kings County Criminal Court which were eventually dismissed. Respondent explained Wynter told the members of the District Attorney's office that he did not push or shove her, which led to the charges being dismissed at court.

Respondent said on March 9, 2012, Wynter returned to his house again and was ringing the bell and banging on the door. This time, Respondent expressed, he called 911, the police responded and a Domestic Incident Report (DIR) was filled out. Respondent identified himself to the police and no arrests were made. He had to go to the 75 Precinct that night and speak to a captain. He explained that he did not strike Wynter that night and that he never picked her up and swung her around because she was too heavy. Being familiar with Wynter's size and height, Respondent said he could not have picked her up.

During cross-examination, Respondent agreed Wynter was an ex-girlfriend, but that he had seen her in recent times leading up to August 2. The day before he was arrested, Respondent admitted he had spoken with Wynter who expressed that she wanted to see him. Respondent told Wynter he could not see her but would call her when he got home. Respondent acknowledged that he never called Wynter back and had no intention of doing so. In the early morning hours of August 2, Respondent agreed Wynter was ringing his doorbell and banging on his door while he was sleeping with Valal in his bed. Respondent disputed the fact that the banging and ringing of the bell bothered him. Respondent explained, "Well, I figured whoever was there they would eventually leave because many people have rung my bell before and they usually just leave." Respondent admitted Valal never woke up while Wynter was ringing the bell and banging on the door.

Respondent agreed that he did not care at first who was at his door and he did not bother to see who was there for around 20 minutes. Eventually, Respondent acknowledged, he went to go see who was at his door. Respondent disputed the fact that

he looked through the front door and saw Wynter before going down to the basement.

However, at his official Department interview, Respondent admitted to saying the following:

Let me go see what's going on. Now, I think someone must be going on. So when I go downstairs and I see her, I see that it's Tarnisha, I say, okay, I don't want to open my front door because I know she's going to push her way in and go upstairs because she thinks Petria's there. So I say, let me come out through the basement.

At the time of the incident, Respondent admitted he had an idea that Wynter was at his door, but he was not sure. Respondent believed Wynter thought a woman named Petria was in his house because Valal and Petria have similar SUVs. Respondent agreed Wynter suspected him of cheating on her in the past with Petria. According to Respondent, he did not want to open the front door because he thought Wynter would push her way in and confront the woman who she believed to be Petria. This was the reason why Respondent made the decision to come out through the basement. Respondent admitted he had to go outside because he thought the door would be broken off the hinges from the banging and "aggressive kicking." Respondent acknowledged he did not recall if he mentioned in his official Department interview that Wynter was kicking his door.

Respondent agreed there was nothing preventing him from yelling through the door and telling Wynter to leave, or calling 911 and saying his ex-girlfriend is trying to break into his house. Instead, Respondent admitted, he came out from his basement and confronted Wynter from behind. Respondent did not remember exactly what he said to Wynter, but he questioned what she was doing there. Respondent acknowledged Valal and Petria had similar SUVs, but he did not know why Wynter was at his house.

Respondent agreed that he did not know Wynter was coming to see him, but if he had known that, he would have talked to her.

Respondent denied that he threw Wynter into the railing after asking her what she was doing there. Respondent admitted Wynter came at him and tripped, and her momentum as she swung at him caused her to fall. In his official Department interview, Respondent acknowledged Wynter came at him as if she was going to swing at him, but never did. Respondent agreed Wynter slipped and fell. At the time, Respondent admitted he tried to catch her because he did not want her to fall down the stairs and hurt herself. Respondent agreed he did not know how Wynter received her injuries and he did not see her injuries at the time of the incident.

Respondent acknowledged two other women who were with Wynter came over after she fell and there was no further contact between them after that. With the aggressive banging at his door, Respondent thought someone was trying to break into his house. Respondent admitted after he realized it was Wynter at his door, he then concluded someone was not trying to break into his house. Instead, Respondent realized Wynter was just trying to get into his house.

Respondent agreed he did not keep a firearm at home and did not call 911 when he thought someone was trying to break into his house. When Wynter was on the phone with 911, Respondent acknowledged she was on the phone but he did not know who she was talking with. Respondent admitted he knew Wynter was going to call 911 because he said to Wynter, "I'm going back in, call me when the police get here." In his official Department interview, Respondent agreed to hearing the 911 call Wynter made and that

he also heard his voice on the recording. Respondent acknowledged he said no, when asked if he had knowledge of Wynter calling 911.

Respondent disputed the fact that there were discussions between Wynter and her two friends on the scene about calling 911. Respondent explained Wynter and her friends were just going to leave until he heard one of them say they wanted to call the police. At that time, Respondent acknowledged saying, "If you're going to call the police just call me when they get here." Respondent admitted what he meant was "to tell the police to call me on my cell phone because I figured she could give them the number because she has my number so she can tell the police to call me." Respondent agreed he did not know the police were coming. He was not sure if Wynter or her friends were going to call 911 because he heard one say, "Let's just leave." So when Respondent heard the banging on the door, he thought Wynter and her friends might still be out there. Respondent acknowledged he looked out his window, but there were no police cars in the front of his house. The police cars, according to Respondent, "were parked down the street, I guess because cars were double-parked the police cars were like three houses down from where my house is." Respondent admitted when looking out his window, he only saw an SUV and Wynter's car in front of his house with police cars further down the block. Respondent agreed he did not see turret lights when he looked out his window, but when he received a call from the police outside, he looked down the street and saw a truck. At this time, according to Respondent, he went downstairs and opened the door.

During questioning by the Court, Respondent said he is about 6'1" in height while Wynter is 5'9" and weighs around 185 pounds. Respondent stated he could not have picked Wynter up and swung her in the way that was described. Respondent expressed

he grabbed Wynter when she was falling down the steps because he was trying to break her fall and he did not want her to fall down the stairs. Respondent did not recall hearing Wynter scream out for help to the people in the car that were with her. Respondent explained he only heard Wynter yelling, "He has that bitch in there, he has that bitch in there," which may have caused the people in the car to come running over.

Respondent said he was not sure if the police were coming to his residence. With Wynter on the phone, Respondent stated he did not know who she was on the phone with because she walked away.

During recross-examination, Respondent admitted to hearing a discussion about 911 and saying to call him when the police get here. Respondent acknowledged seeing Wynter walk away with the phone to her head, but he did not know who she was calling.

FINDINGS AND ANALYSIS

Respondent stands charged herein in that while assigned to Police Service Area #5, while off-duty, on or about August 2, 2011, within the confines of the 75th Precinct, in Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Respondent was involved in a physical altercation with his girlfriend, Tarnisha Winter.

Evidence adduced at trial established that on the incident date, August 2, 2011, Respondent was at his residence sleeping with a female acquaintance when his girlfriend Wynter came to his house. She banged on the door for some time. Wynter told investigators that she banged on the door for 20 minutes trying to ascertain whether Respondent was cheating on her. The stories diverge at this point. Wynter alleged

through the hearsay statement of Ostrowski that Respondent was her current boyfriend. That he grabbed her from behind in a bear hug, lifted her off the ground and swung her around causing her head to hit the side of the house. Respondent then threw her down and tried to push her down the stairs. Ostrowski testified that Wynter informed him that that was the extent of Respondent's actions against her. Ostrowski testified that he observed Wynter on the scene. She had a small laceration above her right eye which was not bleeding at that time because Wynter put a napkin over it. She also had a small laceration on her right foot which had a droplet of blood coming out. (DX 4). Ostrowski did not know how Wynter sustained the injuries. Wynter made a written statement (DX 3) which was essentially the same account of events. She said that once she realized she sustained a gash above her eye, she decided to call 911.

Respondent testified that on the incident date, Wynter was his ex-girlfriend. He explained that they had been dating on and off for three years. Wynter had decided prior to August 2, 2011, that she was going to move on because Respondent was not giving her the commitment that she wanted. Respondent admitted, however, that he occasionally saw Wynter even after they had broken up. Around midnight, he was sleeping in bed with Shirley Valal, a woman he was dating at the time. The doorbell rang for about 20 minutes and then stopped. Then he heard knocking on the door and then kicking. Respondent said he did not respond to the doorbell because anyone who comes to see him calls first. He decided to go downstairs once the kicking of the door took place.

Respondent said he decided to come to the porch via the basement because he did not know who he was going to encounter. He saw Wynter who accused him of being with that "bitch" again. Respondent explained that he was not with the woman Wynter

had a verbal exchange with in the past but he was with a different woman. He stated that Wynter came toward him with a black object in her hand which he thought was a cell phone. She swung at him, but he sidestepped Wynter who fell on the porch. He attempted to help her up but she told him to get off of her, so he released her.

Respondent said he observed two of Wynter's girlfriends approach the stoop and all three women were irate and stated that they might call the police. Rather than argue with them, Respondent said he decided to go back in the house.

Respondent said he continued to hear banging on the door and he assumed it was Wynter again so he did not go to the door. Eventually he received a phone call from ESU who said they were at the door. Respondent went to the door and observed two ESU officers and the duty captain. Respondent said he let them in and identified himself. He was later directed to report to the 75 Precinct where he was suspended and arrested. Respondent said that some time later, Wynter advised the DA's office that Respondent did not push or shove her and his charges were eventually dismissed in court.

The problem with this case is that Wynter never appeared before this forum to testify. Ostrowski never ascertained how Wynter sustained her injuries and the question was never asked. However, Wynter later recanted her statement. In a telephone interview held on December 23, 2011, Wynter stated that she dropped the charges against Respondent because she was confused about the facts after hitting her head. She explained that she sustained the laceration to her eye and foot when she lost her balance and fell to the ground during the incident. She further explained that Respondent had not contacted her since the incident date and no one requested that she drop the charges. Wynter said she was no longer with Respondent and did not wish to pursue the matter.

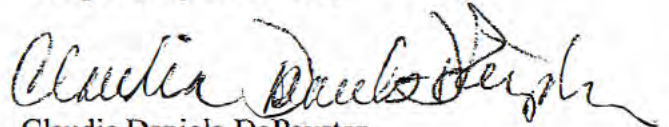
Other hearsay evidence presented in this matter came from people who accompanied Wynter to Respondent's home. Despite being at the same location, each gave inconsistent accounts as to what they observed. Niger Phifer, for example, testified that she was waiting in a vehicle in front of the house as Wynter rang the door bell (DX 6). She acknowledged that the area was dimly lit at the time. She stated that she observed Respondent approach Wynter from behind and throw her to the ground. When asked whether Wynter fell face first or to her back, Phifer replied, "She went. I think she went forward." Phifer's account shows that she is unclear and may not have observed everything she purported to see.

On the other hand, Arlee Small testified that it was dark at the front of the house when her cousin Wynter proceeded to ring the doorbell. She did that for some time and then she began to bang on the door. She did see a female inside of this house but then Respondent came from down in the basement, up the stairs and "rushed" and "slammed" Wynter which she speculated caused Wynter's face to hit the corner, the gate or something "outside the door." Small then said she saw Respondent lift Wynter up and prepare to throw her down the stairs, but then she [Small] jumped out of her truck and stopped him. Respondent put Wynter down but she fell down three or four stairs, scratching her foot. This is in stark contrast to Phifer's account of observing Respondent throw Wynter to the ground. It is also unclear as to how Small knew Respondent lifted Wynter up for the purpose of throwing her down the stairs. These two hearsay statements are not reliable in terms of corroborating what transpired on the incident date and as such are not given much weight in this proceeding.

In essence, Wynter chose not to pursue this matter; that she recanted her statement that she made on the incident date when she was enraged about Respondent cheating on her; and that she said her injuries were the result of a misstep rather than on any action taken by Respondent.

Accordingly, I find Respondent Not Guilty. I also recommend that all time, pay and benefits lost by Respondent while on pre trial suspension for 20 days be restored.

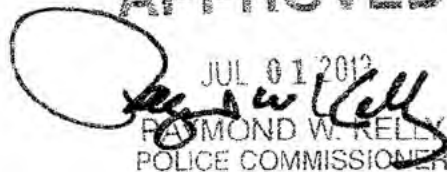
Respectfully submitted,



Claudia Daniels-DePeyster

Assistant Deputy Commissioner Trials

APPROVED



JUL 01 2012
RAYMOND W. KELLY
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142A (Rev. 1-06)

CHAN

CASE NO.	2011-5411
BOOK & PAGE NO.	1 of 1
PERSONNEL ORDER NO.	

SPECIFICATIONS AGAINST RANK/SURNAME		FIRST	M.I.	COMMAND
Police Officer Davis, Matthew				Police Service Area 4
SHIELD NO.	12106	TAX REGISTRY NO.	914746	DATE APPOINTED
				January 30, 1995
RANK/NAME OF COMPLAINANT				COMMAND
Captain Chris D. Morello				Police Service Area 5
DATE OF CHARGES	August 2, 2011	DATE TRIAL COMMENCED	February 8, 2013	DATE TRIAL CONCLUDED
			February 8, 2013	
TRIAL COMMISSIONER				
Honorable Claudia Daniels-DePeyster				

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY	
		PLEA ☐	TRIAL ☒
1. Said Police Officer Matthew Davis, assigned to Police Service Area #5, while off-duty, on or about August 2, 2011, within the confines of the 75th Precinct, in Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer was involved in a physical altercation with his girlfriend, Tarnisha Winter.	NOT GUILTY	It is recommended that Responde it be found Not Guilty. It is further recommended that the Responder be credited the 20 suspension day; previously served.	

Reviewed by Deputy Commissioner of Trials

 06/13/13
DEPUTY COMMISSIONER DATE

Police Commissioner's Approval:

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

 7/1/13
POLICE COMMISSIONER DATE